Lead Broker Blueprint by Lorenzo Marietti

Module 4 deliverable

Sample Lead Purchase Agreement

Annotated template — counsel review required before use

Read this first — legal-review disclaimer

This is a **template**, not a finished agreement. It illustrates the clauses operators typically include in a lead purchase agreement (LPA). It is not legal advice and is not a substitute for review by counsel licensed in your jurisdiction.

Do NOT sign this template as-is. Every LPA must be tailored to (a) the specific vertical, (b) the specific states in which the parties operate, (c) the specific traffic sources and consent infrastructure being used, and (d) the specific deliverable being purchased. Provisions that work in legal lead generation may be impermissible in insurance; provisions that work in California may need to be modified for Texas.

The annotations in *this typeface (italic bracket notes)* are explanatory; remove them in the final agreement. The annotations are the most valuable part of this template — they explain why each clause matters and what to negotiate.

LEAD PURCHASE AGREEMENT

This Lead Purchase Agreement ("Agreement") is entered into as of _____ ("Effective Date") by and between:

_____ ("Seller"), a [state of organization] [entity type], with its principal place of business at _____; and

_____ ("Buyer"), a [state of organization] [entity type], with its principal place of business at _____.

Seller and Buyer are each a "Party" and together the "Parties."

1. Definitions

"Lead" means a Consumer's submission of personal information through Seller's marketing or capture infrastructure, including at minimum: full name, telephone number, email address, postal address (or zip code), the service or product requested, the date and time of submission, and a TrustedForm or Jornaya consent-certificate URL.

"Qualified Lead" means a Lead that meets the specifications set forth in Exhibit A.

"Consumer" means the individual whose personal information is the subject of a Lead.

"Consent" means Prior Express Written Consent as defined under 47 C.F.R. § 64.1200(f)(9) and any applicable buyer-specific contractual specifications.

[Note: Tighten and expand these definitions per your vertical. "Qualified Lead" especially benefits from precision in Exhibit A.]

2. Lead Purchase

2.1. Seller shall make available to Buyer Qualified Leads meeting the specifications in Exhibit A, on the pricing terms in Exhibit B.

2.2. Buyer is not obligated to purchase any minimum volume of Leads under this Agreement unless a minimum is specified in Exhibit B.

2.3. Each Lead delivered by Seller shall be accompanied by the Lead's TrustedForm or Jornaya certificate URL.

3. Exclusivity

3.1. [If exclusive]: Each Lead sold to Buyer hereunder is sold exclusively to Buyer, and Seller shall not sell or transfer the same Lead to any other party. Exclusivity attaches at the time of delivery and continues for [_____] days thereafter.

3.2. [If shared]: Each Lead sold to Buyer hereunder may also be sold to up to [_____] other parties within the same geography. Seller shall use reasonable efforts to space contact attempts to allow Buyer fair opportunity to reach the Consumer first.

[Note: Exclusivity is the single biggest pricing lever. Define it carefully. The number of shared buyers matters significantly to the buyer's intake conversion.]

4. Pricing and Payment

4.1. Buyer shall pay Seller the prices set forth in Exhibit B for each Qualified Lead delivered.

4.2. Seller shall invoice Buyer on a [weekly / bi-weekly / monthly] basis. Buyer shall pay each invoice within [_____] days of receipt.

4.3. [For new vendors]: Buyer may require prepayment, deposit, or a combination of prepayment and net terms for the first [_____] days of this Agreement.

4.4. Late payments accrue interest at [_____]% per month or the maximum permitted by law, whichever is lower.

5. Returns and Credits

5.1. Buyer may submit a return claim for any Lead that fails to meet the specifications in Exhibit A or that falls within an enumerated return reason in Exhibit C.

5.2. Return claims must be submitted within [_____] business days of Lead delivery. Returns submitted outside this window are not eligible for credit or refund.

5.3. Return claims must be accompanied by supporting evidence as defined in Exhibit C.

5.4. Seller shall respond to return claims within [_____] business days. Accepted returns shall be credited against future invoices or refunded at Buyer's election.

[Note: The return window and the evidence requirement are the two most-negotiated provisions of this section. Short windows favor the seller; long windows favor the buyer.]

6. Compliance Representations and Warranties

6.1. Seller represents and warrants that each Lead has been generated in compliance with all applicable federal and state laws, including the Telephone Consumer Protection Act (47 U.S.C. § 227 and 47 C.F.R. § 64.1200) and the FTC's Telemarketing Sales Rule (16 C.F.R. Part 310).

6.2. Seller represents and warrants that the Consumer of each Lead provided Prior Express Written Consent meeting the requirements of 47 C.F.R. § 64.1200(f)(9) before the Lead's submission, and that Seller maintains a tamper-evident consent record (TrustedForm, Jornaya, or equivalent) for each Lead delivered.

6.3. Seller shall maintain consent records for a minimum of five (5) years and shall produce them within [_____] business days of Buyer's request.

6.4. Buyer represents and warrants that it shall use Leads in compliance with all applicable federal and state laws and shall honor revocations of consent within ten (10) business days of receipt, as required by 47 C.F.R. § 64.1200 (April 11, 2025 revocation rule).

[Note: These reps are the legal backbone of the LPA. Both sides need them. Do not weaken them.]

7. Indemnification

7.1. Seller shall defend, indemnify, and hold harmless Buyer (and its officers, directors, employees, and agents) against any third-party claim, loss, liability, settlement, or judgment arising out of or relating to (a) Seller's breach of Section 6 (Compliance Representations and Warranties); (b) any defect in Seller's consent record for a delivered Lead; or (c) Seller's gross negligence or willful misconduct.

7.2. Buyer shall defend, indemnify, and hold harmless Seller (and its officers, directors, employees, and agents) against any third-party claim, loss, liability, settlement, or judgment arising out of or relating to (a) Buyer's breach of Section 6.4; (b) Buyer's use of Leads outside the parameters specified in this Agreement; or (c) Buyer's gross negligence or willful misconduct.

[Note: Each party indemnifies for its own actions. Reciprocity is normal and expected. Caps on indemnification are sometimes negotiated; bilateral caps protect both sides.]

8. Audit Rights

8.1. Upon reasonable prior notice, Buyer may audit Seller's consent records, lead-source documentation, and traffic-source compliance for any Leads delivered under this Agreement during the prior [_____] months.

8.2. Audits may be conducted by Buyer or by an independent third party retained by Buyer at Buyer's cost, except that if an audit reveals material non-compliance, Seller shall reimburse the reasonable costs of the audit.

8.3. Audit cooperation shall not unreasonably interfere with Seller's business operations.

9. Term and Termination

9.1. This Agreement begins on the Effective Date and continues until terminated.

9.2. Either Party may terminate this Agreement for convenience upon [_____] days' written notice.

9.3. Either Party may terminate this Agreement immediately for material breach if the breaching Party fails to cure within [_____] days of written notice of the breach.

9.4. Termination does not affect (a) Buyer's obligation to pay for Leads delivered prior to termination, or (b) the Parties' obligations under Sections 6, 7, and 12.

10. Confidentiality

10.1. Each Party shall hold the other Party's Confidential Information in confidence and shall not disclose it to third parties except as required by law or as necessary to perform under this Agreement.

10.2. Confidential Information includes pricing, Lead specifications, consumer data, and any information marked or reasonably understood as confidential.

11. Data Privacy

11.1. Each Party shall comply with all applicable consumer privacy laws, including the California Consumer Privacy Act (Cal. Civ. Code § 1798.100 et seq.) and equivalent state laws.

11.2. Seller acknowledges that Lead delivery may constitute a "sale" of personal information under the CCPA and equivalent state laws; both Parties shall update their privacy notices accordingly.

11.3. Each Party shall promptly notify the other of any data breach affecting Lead-related data and shall cooperate in any required regulatory or consumer notifications.

12. Limitation of Liability

12.1. Except for the indemnification obligations in Section 7 and breaches of confidentiality, neither Party shall be liable for indirect, incidental, consequential, special, or punitive damages.

12.2. Each Party's total aggregate liability under this Agreement, except for indemnification obligations in Section 7 and breaches of Section 6.1-6.2 (consent reps), shall not exceed [a defined cap — e.g., fees paid in the prior 12 months].

[Note: Carve-outs from the liability cap matter enormously. TCPA exposure is typically carved out of caps in lead-gen LPAs; don't agree to a cap that limits indemnification for consent-record defects.]

13. General Provisions

13.1. Governing Law: This Agreement is governed by the laws of the State of _____, without regard to its conflict-of-laws principles.

13.2. Dispute Resolution: Disputes shall first be referred to good-faith negotiation between executives. Unresolved disputes shall be resolved by [arbitration / court of competent jurisdiction] in [_____].

13.3. Entire Agreement: This Agreement (with Exhibits A, B, and C) is the entire agreement of the Parties on its subject matter and supersedes prior agreements.

13.4. Amendment: Modifications must be in writing and signed by both Parties.

13.5. Assignment: Neither Party may assign this Agreement without the other Party's prior written consent, except to a successor in a merger or sale of all or substantially all assets.

13.6. Notices: Notices shall be delivered to the addresses specified in this Agreement, or to such other address as a Party may designate in writing.

Signature block

SELLER: _____ By: _____ Date: _____

BUYER: _____ By: _____ Date: _____

Exhibit A — Lead Specifications

Sub-vertical: _____

Geography: _____

Required data fields: name, telephone, email, postal address or zip code, [other vertical-specific fields].

Qualification questions (must be "yes" to qualify): _____

Disqualification triggers: _____

[Note: Precision in this Exhibit is the single most important defense against future return disputes. Spend time here.]

Exhibit B — Pricing

Lead type: ☐ Shared form ☐ Exclusive form ☐ Pay-per-call ☐ Signed case (CPA) ☐ Other: _____

Price per Qualified Lead: $_____

Volume tiers (if applicable):

- _____ leads/month: $_____ per lead
- _____ leads/month: $_____ per lead

Minimum monthly volume commitment: _____ (or "none")

Payment terms: ☐ Net 15 ☐ Net 30 ☐ Net 45 ☐ Prepayment ☐ Other: _____

Exhibit C — Return Reasons and Evidence

Returns are eligible only for the following reasons and only when accompanied by the listed evidence:

1. Duplicate of prior Lead — Evidence: CRM record or screenshot showing earlier submission of the same Consumer.

2. Wrong or disconnected phone number — Evidence: telephony attempt log with three failed attempts within 48 hours of delivery.

3. Out-of-geography — Evidence: Consumer address as submitted vs. geography specified in Exhibit A.

4. Fails qualification question — Evidence: recorded intake or Consumer's written response to the qualification question.

5. DNC match — Evidence: scrubbing-vendor record showing DNC registration.

6. Consent record defect — Evidence: notation of the specific PEWC element missing or invalid.

Return window: [_____] business days from Lead delivery. Returns submitted outside this window are not eligible for credit.

[Note: Consumer non-response is NOT a qualified return reason under this template — adjust if your buyer requires otherwise, but understand it shifts intake risk to the seller.]

Closing reminder

This template is illustrative. Do not sign it without **review by counsel licensed in your jurisdiction** and tailored to your specific vertical, states, traffic sources, and consent infrastructure.

Every clause above is negotiable in principle. The clauses you should resist weakening: TCPA reps and warranties (Section 6), indemnification scope (Section 7), audit rights (Section 8), and the carve-outs from the liability cap (Section 12).